

24PSCV03647 24PSCV03647

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-07

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Case Number: 24PSCV03647 Hearing Date: July 7, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24PSCV03647

SAMUEL

CHUNG vs YANYOU XU, et al.

July

7, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF ARDENT LAW GROUP,

PC TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The
Court grants the Motion.

The
Court will complete, sign and file the Form Order received-stamped on June 5,
2026.

ANALYSIS:

By the Motion, filed June 5, 2026, counsel moves to
be relieved as attorney of record for Plaintiff SAMUEL CHUNG, by declaring, in
the form Declaration, at paragraph 2: "Attorney is required to withdraw
pursuant to California Rules of Professional Conduct, Rule 1.16(b)(5) because
client Samuel Chung has ceased to paid his attorney's fees and communications
with the Attorney. As a result, continuing to represent the client would cause
undue hardship on attorney."

Here, the form notice, declaration, proposed order,
and proof of service sufficiently comply with the requirements for a motion to
be relieved as counsel. (See
Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's declaration shows
cognizable grounds for withdrawal:

A breakdown in the
attorney-client relationship (or personality clash). (Estate of Falco
v. Decker (1987) 188 Cal.App.3d 1004, 1014 (Falco).)

The client by conduct
renders it unreasonably difficult for the member to carry out the
employment effectively (e.g., noncooperation or
noncommunication). (Rules Prof. Conduct, rule 1.16(b)(4). Cf. Falco, supra, 188
Cal App.3d at p. 1020 ["We find no abuse of discretion in
the trial court's implicit finding rejecting the contention that
respondents' lack of cooperation justified appellants' withdrawal."].)

The client breaches an agreement or obligation
to the member as to expenses or fees. (Rules Prof. Conduct, rule 1.16; Lempert

v. Sup. Ct. (2003) 112 Cal.App.4th 1161, 1173.)

Finally, no opposing document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197.) In that regard, on May 26, 2026, the Court ordered this case stayed pending a related appeal, which, after attorney withdrawal, would enable the client to retain other counsel for timely representation.

Therefore, the Court grants the Motion and will sign the proposed Order counsel submitted.